

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On 26/01/23, the Austrian Control Authority communicated to this Agency, through the "Internal Market Information System" (IMI) regulated by Regulation (EU) No. 1024/2012 of the European Parliament and of the Council, dated October 25, 2012 (IMI Regulation), a complaint filed by A.A.A.

The complaint is directed against the entity TURNER BROADCASTING SYSTEM ESPAÑA, S.L. with CIF: B82320227, owner of the website <https://www.canaltnt.es> (hereinafter, the complained party), for the alleged violation of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

SECOND: On 23/02/23, in accordance with Article 65 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD), the complaint filed by the complainant was admitted for processing.

THIRD: On 11/04/24, the Inspection Subdirectorate of the Spanish Agency for Data Protection carried out the following diligence regarding the "Cookie Policy" of the website <https://www.canaltnt.es>:

- 1. Upon entering the website, the user is automatically redirected to the domain [warnertv.es](https://www.warnertv.es), which is a webpage that looks different from the complained website.
- 2. Upon entering the website [warnertv.es](https://www.warnertv.es), a first-layer cookie notice is displayed with the text:
 - o "We and our affiliates and partners access your device and store data on it to personalize, measure, and provide content and ads, analyze your usage, and improve your experience. Click 'Accept' to allow it or go to 'Manage preferences' to choose other options."
- 3. Without taking any action on the website or on the first-layer cookie notice, no cookie is installed.
- 4. There is a second-layer cookie notice where:
 - o There is an "Accept" button at the top, a "Reject" button at the bottom, and a "Save preferences" button next to the reject button.
 - b. The types of cookies initially shown in the banner are deactivated by default (functional cookies), except for those indicated as strictly necessary, which are marked as "Always Active."
 - c. The only strictly necessary cookie is "OptanonConsent." It is verified that by rejecting all cookies using the second-layer cookie notice, only the cookies "OptanonConsent" and "OptanonAlertBoxClosed" remain installed.
- 6. After the previous step and after navigating the website, it is verified that, in addition to the previous cookies, the cookie "icwp-wpsfnotbot" associated with the domain [blog.warnertv.es](https://www.blog.warnertv.es) is installed. It is also verified that a first-layer cookie banner continues to be displayed at the bottom of the screen with the text "We use cookies to ensure that you always get the best experience when visiting our website, to measure usage and performance, and to serve ads. By clicking 'Accept,' you accept our standard settings. You can change it by clicking 'Preferences Center' or using the link at the bottom of each page." There are two buttons of similar text color and size; "Accept" and "Privacy Policy."
- 7. According to cookiepedia.co.uk, the cookies "OptanonConsent" and "OptanonAlertBoxClosed" are classified as strictly necessary, and the cookie "icwpwpsfnotbot" is classified as unknown without its functionality being detectable.
- 8. The legal terms of the website state: "[...] Turner Broadcasting System España SL ('TBS') reserves the right at its sole discretion to modify, alter, or update these terms of use in any other way at any time.[...] This website is controlled and operated by TBS, whose registered office is located at José Ortega y Gasset 22-24, 7th floor, postal code 28006, Madrid, and whose CIF is B-82320227 [...]"
- 9. In the list of controllers published at <https://www.warnermediaprivacy.com/policycenter/b2c/affiliateslist/#controllers>, referenced from the

privacy policy, it states that the controller of TNT España is TURNER BROADCASTING SYSTEM ESPAÑA.

FOURTH: On 16/01/24, the Inspection Subdirectorate of the Spanish Agency for Data Protection carried out the following diligence regarding the "Cookie Policy" of the website <https://warnertv.es> upon verifying that if a user attempts to access the website www.canaltnt.es, which is the subject of the complaint, they are redirected to this new page:

a) Regarding the use of cookies before the user gives their consent: Upon entering the website <https://warnertv.es> for the first time, after clearing the terminal equipment of browsing history and cookies, without accepting new cookies or taking any action on the website, it has been verified that the cookie "OptanonConsent" is installed. According to cookiepedia.co.uk, this cookie is classified as strictly necessary, whose purpose is to store information about the categories of cookies used by the site and whether visitors have given or withdrawn their consent for the use of each category.

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This allows site owners to prevent cookies from being set in each category in the user's browser when consent is not given. The cookie has a normal lifespan of one year, so returning visitors to the site will remember their preferences. It does not contain information that can identify the site visitor.

b).- Regarding the cookie information banner on the first layer:

When entering the website for the first time, after clearing the terminal device's browsing history and cookies, without taking any action on the webpage, a cookie information banner appears with the following message:

We, our affiliates, and partners access your device and store data on it to personalize, measure, and deliver content and ads, analyze your usage, and improve your experience.

Click "Accept" to allow it or go to "Manage Preferences" to choose other options. For more information, please see our <>

<>

If you choose to accept all cookies by clicking on the <> option, it is verified how the website begins to use a new cookie "OptanonAlertBoxClosed", in addition to the previous one, which according to cookiepedia.co.uk is classified as strictly necessary, and is set after visitors have seen a cookie information notice and, in some cases, only when they actively close the notice. It allows the website not to show the message more than once to a user. The cookie has a lifespan of one year and does not contain personal information.

If you click on the <> option, the website displays a control panel where only one group of cookies (functional) appears, pre-checked in the "disabled" option.

If you wish to reject all cookies by clicking on the <> option, it is verified how the website continues to use the cookies "OptanonConsent" and "OptanonAlertBoxClosed", detected as strictly necessary.

d).- Regarding the information provided in the "Cookie Policy":

If you wish to access the "Cookie Policy" through the link available at the bottom of the main page, the website redirects the user to a new page <https://warnertv.es/politica-de-cookies>, where information is provided about: what cookies are; the purpose of the information collected through cookies, what types of cookies exist, and how cookies can be managed through the browsers installed on the terminal device.

e).- Regarding the possibility of modifying the consent given about cookies, at any time during web browsing.

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If the user has given initial consent for the website to use cookies through the <> option available in the cookie information banner and wishes, at a certain moment, to modify that consent, it is verified that there is no possibility to access the cookie control panel, which could be accessed from the information banner that appeared on the home page (configure preferences).

LEGAL GROUNDS

I

Competence.

According to the provisions of Article 43.1 of the LSSI and the provisions of Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

The Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

II

a).- Regarding the installation of cookies on the terminal device prior to the user's consent:

Article 22.2 of the LSSI establishes that users must be provided with clear and complete information about the use of data storage and retrieval devices and, in particular, about the purposes of data processing.

This information must be provided in accordance with the provisions of the GDPR.

Therefore, when the use of a cookie involves processing that allows for the identification of the user, the data controllers must ensure compliance with the requirements established by data protection regulations.

However, it is necessary to point out that those cookies necessary for the intercommunication of terminals and the network and those that provide a service expressly requested by the user would be exempt from compliance with the obligations established in Article 22.2 of the LSSI.

In this regard, the GT29, in its Opinion 4/2012, interpreted that among the exempted cookies would be user input cookies (those used to fill out forms, or for managing a shopping cart); authentication or user identification cookies (session); user security cookies.

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(those used to detect erroneous and repeated attempts to connect to a website); session cookies for multimedia players; session cookies for load balancing; user interface customization cookies; and some plug-in cookies for exchanging social content.

These cookies would be excluded from the scope of Article 22.2 of the LSSI, and therefore, it would not be necessary to inform or obtain consent for their use. On the contrary, it will be necessary to inform and obtain the prior consent of the user before using any other type of cookies, whether first-party or third-party, session or persistent.

In this case, it has been confirmed that when attempting to access the website <https://www.canaltnt.es>, which is the subject of the complaint, whose owner was TURNER BROADCASTING SYSTEM ESPAÑA, S.L. with CIF: B82320227, the user is redirected to a new website, <https://warnertv.es>, whose owner is DISCOVERY NETWORKS, S.L. with CIF: B86815560.

Although it is not the subject of the complaint, upon checking the website <https://warnertv.es>, it has been confirmed that the cookie "OptanonConsent" is installed, which according to cookiepedia.co.uk is classified as strictly necessary.

b).- Regarding the cookie information banner present on the first layer (main page):

The cookie banner on the first layer must include information regarding the identification of the publisher responsible for the website, in case their identifying data is not found in other sections of the page or if their identity cannot be clearly inferred from the site itself. It must also include a generic identification of the purposes for which the cookies will be used and whether they are first-party or third-party cookies, without the need to identify them in this first layer.

Additionally, it must include generic information about the type of data that will be collected and used in case user profiles are created, and it must include information on how the user can accept, configure, and reject the use of cookies, with a warning, if applicable, that if a certain action is taken, it will be understood that the user accepts the use of cookies.

Apart from the generic information about cookies, this banner must have a clearly visible link leading to a second informative layer about the use of cookies. This same link may be used to direct the user to the cookie configuration panel, provided that access to the configuration panel is direct, meaning that the user does not have to navigate within the second layer to locate it.

In the case at hand, it is noted that the existing cookie information banner on the first layer of the websites in question identifies the purposes for which the cookies will be used and informs about the type of data that will be collected and includes information on how the user can accept, configure, and reject the use of cookies.

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c).- Regarding consent for the installation of cookies on the terminal equipment:

For the use of non-exempt cookies, it is necessary to obtain the user's express consent. This consent can be obtained by clicking on "accept" or inferred from an unequivocal action taken by the user that indicates that consent has been unequivocally given. Therefore, mere inactivity by the user, scrolling, or browsing the website will not be considered a clear affirmative action in any circumstance and will not imply the granting of consent by itself. Similarly, access to the second layer if the information is presented in layers, as well as the navigation necessary for the user to manage their preferences regarding cookies in the control panel, is also not considered an active behavior from which acceptance of cookies can be derived.

The existence of "Cookie Walls" is also not permitted, that is, pop-up windows that block content and access to the website, forcing the user to accept the use of cookies in order to access the page and continue browsing without offering the user any alternative that allows them to freely manage their preferences regarding the use of cookies.

If the option is to go to a second layer or cookie control panel, the link must take the user directly to that configuration panel. To facilitate selection, the panel may implement, in addition to a granular cookie management system, two additional buttons, one to accept all cookies and another to reject them all. If the user saves their choice without having selected any cookies, it will be understood that they have rejected all cookies. In relation to this second possibility, pre-checked boxes favoring the acceptance of cookies are not admissible under any circumstances.

If for cookie configuration, the website refers to the settings of the browser installed on the terminal equipment, this option could be considered complementary for obtaining consent, but not as the sole mechanism. Therefore, if the publisher opts for this option, they must also provide, in any case, a mechanism that allows the rejection of the use of cookies and/or to do so in a granular manner.

On the other hand, the withdrawal of previously granted consent by the user must be possible at any time. To this end, the publisher must offer a mechanism that allows for easy withdrawal of consent at any time. It will be considered that this ease exists, for example, when the user has simple and permanent access to the cookie management or configuration system.

If the publisher's cookie management or configuration system does not allow for the prevention of the use of third-party cookies once accepted by the user, information will be provided about the tools offered by the browser and third parties, warning that if the user accepts third-party cookies and subsequently wishes to delete them, they must do so from their own browser or the system enabled by

third parties for that purpose.

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In the present case, if one opts to accept all cookies, it is verified that the website starts to use a new cookie “OptanonAlertBoxClosed,” in addition to the previous one, which according to cookiepedia.co.uk is classified as strictly necessary.

d).- Regarding the information provided in the second layer (cookie policy):

There must be a second layer on the website “Cookie Policy” where more detailed information is provided about the characteristics of the cookies, including information about the definition and generic function of cookies (what cookies are); about the type of cookies that are used and their purpose (what types of cookies are used on the website); the identification of who uses the cookies, that is, whether the information obtained by the cookies is processed only by the publisher and/or also by third parties with identification of the latter; the retention period of the cookies on the terminal equipment; and if applicable, information about data transfers to third countries and the creation of profiles that involve automated decision-making.

In the present case, if one wishes to access the “Cookie Policy” through the existing link at the bottom of the main page, the website redirects the user to a new page

<https://warnertv.es/politica-de-cookies>

, where information is provided about: what cookies are; what the information collected through cookies is used for, what types of cookies exist, and how cookies can be managed through the browsers installed on the terminal equipment.

e).- Regarding the possibility of withdrawing consent for the use of cookies once granted.

Users must be able to withdraw the previously granted consent at any time. To this end, the publisher must ensure that it provides information to users in its cookie policy on how they can withdraw consent. The user must be able to revoke consent easily. The system offered to withdraw consent must be as easy as that used when consent was granted. It will be considered that such ease exists, for example, when the user has simple and permanent access to the cookie management or configuration system. In the present case, if the user has given initial consent for the website to use cookies and wishes, at a certain moment, to modify that consent, it is verified that there is no possibility of accessing the cookie control panel, which could be accessed from the information banner that appeared on the initial page (configure preferences). However, upon verifying that the website does not use cookies other than technical or necessary ones, this mechanism is not deemed necessary.

III

Article 22.2 of the LSSI establishes the following:

“Service providers may use data storage and retrieval devices on the terminal equipment of the recipients, provided that they have given their consent after being informed.”

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provided clear and complete information about its use, in particular, regarding the purposes of data processing, in accordance with the provisions of Organic Law 15/1999, of December 13, on the protection of personal data.

When technically possible and effective, the recipient's consent to accept the processing of data may be provided through the appropriate parameters of the browser or other applications.

The above shall not prevent the possible storage or technical access solely for the purpose of transmitting a communication over an electronic communications network or, to the extent that it is strictly necessary, for the provision of an information society service expressly requested by the recipient.

In this case, it has been confirmed that when attempting to access the website <https://www.canaltnt.es>, which is the subject of the complaint, whose owner was TURNER BROADCASTING SYSTEM ESPAÑA, S.L. with CIF: B82320227, the user is redirected to a new website, <https://warnertv.es>, whose owner is DISCOVERY NETWORKS, S.L. with CIF: B86815560.

Notwithstanding the above, it has been confirmed that on the new page <https://warnertv.es>, no cookies other than technical or necessary ones are used, and the information available in the initial information banner and in the "Cookie Policy" does not contradict what is stipulated in the regulations.

Therefore, in accordance with what is indicated by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to the complaining party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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